California bill restricting food dyes could impact school lunches nationwide

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Legislation that would ban food containing six synthetic dyes from being served in California schools could impact what kids eat nationwide, its author, Assemblymember Jesse Gabriel, D-Encino, said at a news conference Monday morning.

Assembly Bill 2316, also known as the California School Food Safety Act, would prohibit California schools from offering foods containing red dye 40, yellow dye 5, blue dye 1, green dye 3, blue dye 2 and yellow dye 6. The vibrant dyes are typically found in baked goods, chips, soda and candy, and do not impact the taste of food, Gabriel said.

Research has shown that these six synthetic dyes can cause neurobehavioral disorders, such as attention-deficit hyperactivity disorder, in children, according to Gabriel. These same dyes are required to have a warning label in Europe, he said.

"It just makes no sense when the superintendent and others are out there, our teachers are working so hard to help our students achieve, that we would be putting all this effort and energy and love into our young people, and then feeding them some food at lunch or at recess that is actually going to undermine all of that good work," said Gabriel, who was joined at the news conference by Tony Thurmond, superintendent of public instruction.

The legislation would be the first of its kind in the nation. If passed, the bill would go into effect Dec. 31, 2027.

"We firmly believe that this bill, if signed into law, will have a national impact," Gabriel said. "And we believe that it will prompt nationwide changes to popular foods marketing toward children. We know that because of how supply chains work, because of how food manufacturers work. We think it's unlikely that folks are going to produce one version of their product for California and a different version for Kansas."

The prohibition would not include food sold as part of a school fundraising event, if the sale takes place on campus at least a half-hour after the school day or is sold off campus.

The bill is among hundreds that must pass the Legislature by an Aug. 31 deadline. Gov. Gavin Newsom will then have about a month to sign or veto the bills, Gabriel said.

"It is crunch time here in Sacramento," Gabriel said. "We have returned from our recess. We have less than one month left of our legislative session. And this bill has so far passed through the California Assembly with a strong bipartisan vote. It has passed every single policy committee. It passed the Senate Education Committee with a unanimous bipartisan vote. And we now stand, just steps away from Governor Newsom's desk."

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